REGION 6
DALLAS, TX 75270

August 3, 2026

Debbie-Anne A. Reese, Secretary
Federal Energy Regulatory Commission
888 First Street NE, Room 1A
Washington, D.C. 20426
ferconlinesupport@ferc.gov

Re: EPA Scoping Comments on the Permian Basin Expansion Project in Lea County, New Mexico and Yoakum and Gaines Counties, Texas (Docket No. CP26–534–000)

Dear Ms. Reese:

The U.S. Environmental Protection Agency has reviewed the Federal Energy Regulatory Commission's notice to prepare an environmental document for the above referenced project. EPA's comments are provided pursuant to the National Environmental Policy Act and our NEPA review authority under Section 309 of the Clean Air Act.

FERC will prepare an environmental document that will discuss the environmental impacts of the proposed Permian Basin Expansion Project. The proposed project involves construction and operation of approximately 16.2 miles of interstate, natural gas transmission pipeline and associated facilities, and a new compressor station in New Mexico and Texas. Additionally, the project modifies facilities along the fence line of the existing Plains compressor station in Yoakum County, Texas. The Permian Basin Expansion Project would provide about 361,600 dekatherms per day of firm natural gas transportation service to a new natural gas-fired generation facility located in Gaines County, Texas. Construction of the proposed facilities would disturb about 355.7 acres of land for the pipeline and above-ground facilities.

EPA is providing the enclosed comments to assist in the development of the environmental document. EPA appreciates the opportunity to provide scoping comments and look forward to continued participation in the NEPA process. If you have any questions, please contact me at (214) 665-8565, or contact Kimeka Price, NEPA Project Manager, at (214) 665-7438 or via email at price.kimeka@epa.gov.

Sincerely,

ROBERT HOUSTON

Digitally signed by ROBERT HOUSTON
Date: 2026.08.03 12:59:32 -05'00'

Robert Houston
Staff Director
Office of Regional Administrator

Enclosure: EPA's Detailed Scoping Comments

Detailed Scoping Comments
for the proposed
Permian Basin Expansion Project
Lea County, New Mexico and Yoakum and Gaines Counties, Texas

Water Quality

EPA recommends the environmental document describe existing surface, groundwater, and watershed conditions and assess potential impacts to water quality and quantity, including impairments. EPA also recommends the environmental document address natural drainage patterns and potential impacts to floodplains.

EPA recommends the environmental document describes any disturbance areas, including an acreage by land cover (e.g., forest, riparian, floodplains, agricultural, grassland, and developed/open). Additionally, the environmental document should describe the restoration plan for restoring the remaining acreage to former uses (e.g., restoration methods, performance standards, and timeframes). EPA also recommends the environmental document describe the short-term and long-term impacts of the disturbance areas, including any residual effects and the mitigation and monitoring measures.

National Pollutant Discharge Elimination System

EPA recommends the environmental document evaluate the applicability of Clean Water Act Section 402 regulations, including 40 CFR §122.26(b)(14)(x) and §122.26(b)(15), to clarify when National Pollutant Discharge Elimination System permit coverage is required for operators of construction activities that discharge stormwater. Clarifying these requirements will reduce uncertainty for regulated entities, ensure consistent application of permitting obligations, and strengthen compliance with federal water quality protections by promoting effective implementation of best management practices.

Clean Water Act Section 303(d)

EPA recommends the environmental document identify any impaired waters under Section 303(d) within the project area, describe applicable TMDLs (e.g., common waterbody name, state waterbody IDs, segments, and impairments), assess how proposed activities may affect ongoing restoration or protection efforts, and evaluate mitigation to prevent further degradation. The environmental document should provide a preliminary inventory of perennial, intermittent, and ephemeral waterbody crossings by milepost and state and describe proposed crossing methods. EPA recommends also the environmental document address estimated hydrostatic test water and trench dewatering volumes and identify potential discharge locations and receiving waters.

Coordination with Tribal Governments

If applicable, EPA recommends the environmental document describe the government-to-government consultation process between the lead agency and affected Tribes, including issues raised and how they were addressed in selecting the proposed alternative.

Biological Resources, Habitat, and Wildlife

EPA recommends the environmental document address the requirements of the Endangered Species Act including the identification of candidate and listed species, designated critical habitat and species potentially affected by each alternative, along with practicable mitigation and the outcome of any consultation with the U.S. Fish and Wildlife Service. EPA also recommends that the environmental document describe baseline habitat conditions, anticipated impacts, and measures for monitoring, adaptive management, and compensatory mitigation, including potential lands for habitat replacement. EPA further recommends addressing habitat fragmentation, wildlife movement, and impacts from construction, installation, and maintenance activities (e.g., trenching, grading, filling, fencing). EPA recommends the environmental document incorporate any applicable USFWS guidance, supporting data or modeling.

Air Quality

EPA recommends that environmental document provide a detailed assessment of ambient air conditions, applicable National Ambient Air Quality Standards and non-NAAQS pollutants, criteria pollutant nonattainment areas, and potential project-related impacts on air quality, including temporary, long-term, and visibility effects in Class I Federal Areas (40 CFR Part 81, Subpart D). EPA recommends that the environmental document quantify emissions of criteria and hazardous air pollutants from project-related activities; specify emission sources (mobile, stationary, fugitive, area, and ground disturbance); and evaluate appropriate mitigation measures. EPA further recommends inclusion of a Construction Emissions Mitigation Plan, incorporating relevant requirements to minimize particulate matter and toxic air emissions. The environmental document should identify applicable air permits, such as New Source Review and Title V, for the proposed action.

Hazardous Materials, Hazardous Waste, and Solid Waste

EPA recommends the environmental document evaluate impacts from solid, hazardous, and other waste generated by the proposed action in accordance with RCRA Subtitle C and D, TSCA, and other applicable regulations. The environmental document should identify waste types, volumes, and management plans; address applicable federal requirements; and evaluate mitigation measures, including waste minimization and use of less toxic alternatives.

EPA also recommends assessing risks from hazardous waste transport, including potential accidental releases, and identifying any contaminated sites that may be encountered during project-related activities and how they will be managed.

National Historic Preservation Act and Executive Order 13007

EPA recommends the environmental document address compliance with Section 106 of the National Historic Preservation Act or other applicable state law. The environmental document should address the presence of cultural and historic resources and their eligibility for listing on the National Register, including Indian sacred sites and traditional cultural properties, and describe how the lead agency will avoid adverse effects to resources. EPA further recommends summarizing all coordination and consultation with State Historic Preservation Officer/Tribal Historic Preservation Officer, Tribes, and other parties.